

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE

4 FOR

HOUSE BILL NO. 3749

By: Travis

7 COMMITTEE SUBSTITUTE

8 An Act relating to counties and county officers;
9 amending 19 O.S. 2021, Section 527, which relates to
10 authorized employment of legal counsel; authorizing
11 certain county officers to employ a general counsel;
12 providing for noncodification; and providing an
13 effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 19 O.S. 2021, Section 527, is
16 amended to read as follows:

17 Section 527. A. The sheriff, treasurer, clerk, court clerk,
18 each individual county commissioner, or assessor in a county shall
19 have the authority to employ a general counsel, either in-house as a
20 staff attorney or through an outside law firm, to advise or
21 represent that officer and his or her office in the performance of
22 the official duties of that office. The Board of County
23 Commissioners shall approve all contracts for outside counsel. A
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1 general counsel employed pursuant to this section shall be
2 compensated from the funds of the employing county office.

3 B. The sheriff may employ outside counsel pursuant to this
4 section to provide immediate representation to a deputy of the
5 sheriff in a deputy-involved shooting incident; provided, the
6 sheriff shall not continue payment to the counsel if the deputy
7 involved is charged with any crime arising from the incident.

8 SECTION 2. This act shall become effective November 1, 2026.

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10 60-2-16933 GRS 03/03/26

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